

40 & 41 Vict. of the Treasury Bills Act, 1877 (which relates to the renewal of bills) shall not apply with respect to those bills.

(3) Any money borrowed otherwise than on Treasury Bills shall be repaid, with any interest payable thereon, out of the Consolidated Fund, at any period not later than the next succeeding quarter to that in which the money was borrowed.

(4) Any money borrowed under this section shall be placed to the credit of the account of the Exchequer, and shall form part of the said Consolidated Fund, and be available in any manner in which such Fund is available.

Short title.

4. This Act may be cited as the Consolidated Fund Act, 1960.

CHAPTER 11

An Act to amend the law as to the superannuation benefits which may be granted to or in respect of certain members of Her Majesty's foreign service.
[22nd March, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Limit on special increases of superannuation benefits which may be granted in certain cases.
6 & 7 Geo. 6.
c. 35.

1.—(1) For the purposes of any grant after the passing of this Act under section two of the Foreign Service Act, 1943 (which provides that where the employment in Her Majesty's foreign service of an officer of a grade not lower than that of second secretary is terminated before the retiring age, and the Secretary of State certifies that the termination is desirable in the public interest, there may be granted to that officer a superannuation allowance and an additional allowance, together with additional amounts by way of special increases added to those allowances), in subsection (2) of that section the words from "subject" onwards (which limit the amount which may be granted by way of such a special increase) shall cease to have effect, and instead thereof the following provisions of this section shall have effect in relation to any such grant.

(2) Any such special increase added to the superannuation or additional allowance—

(a) shall not be such as to bring the amount of that allowance up to an amount higher than that which could have been granted apart from any such increase if at the date of the termination of the officer's employment he had completed such reckonable service not exceeding forty

years as he would have completed if he had continued in reckonable service in the same employment until he attained the age of sixty years; and

- (b) shall not exceed whichever is the higher of the following sums, that is to say—

(i) a sum equal, in the case of the superannuation allowance, to one-twelfth or, in the case of the additional allowance, to three-twelfths of the amount of the salary and emoluments upon which the superannuation allowance falls to be computed;

(ii) such sum as may be required to make that allowance equal, in the case of the superannuation allowance, to three-twelfths or, in the case of the additional allowance, to nine-twelfths of the amount of the salary and emoluments aforesaid:

Provided that, for the purposes of any special increase added to the additional allowance granted to an officer to whom section four of the Superannuation Act, 1935, does not apply, paragraph 25 & 26 Geo. 5. (a) of this subsection shall have effect as if for the reference c. 23. therein to forty years there were substituted a reference to forty-five years.

(3) Where in consequence of the grant to the officer of the superannuation allowance a pension may fall to be granted under Part I of the Superannuation Act, 1949, to the widow, or under Part II of that Act to a dependant, of the officer and a special increase is added to that allowance, any amount which apart from this subsection would have been added to the additional allowance by way of special increase shall be abated—

(a) where such a pension to the officer's widow may fall to be granted, by one-third; and

(b) in respect of each nomination by the officer under the said Part II, by an amount equal to four-fifteenths of the appropriate percentage of the amount of the increase apart from this subsection.

- (4) In this section—

“the appropriate percentage”, in relation to any nomination under the said Part II, means the percentage determined in accordance with subsection (4) of section nineteen of the said Act of 1949 to be the appropriate percentage for the purpose of a contribution in respect of that nomination under section twenty-two of that Act;

“reckonable service” means service as computed in accordance with the enactments relating to the computation of service for the purpose of determining the amount of a superannuation allowance or additional allowance.

Superannuation benefits in certain cases of premature retirement.

2. Subsections (2) and (3) of section thirty-four of the Superannuation Act, 1949 (which provide that where the employment of a person as a civil servant is terminated at his request after he has attained the age of fifty years but before the retiring age a superannuation allowance and an additional allowance may be granted to that person or, in certain circumstances, a gratuity may be granted to his legal personal representatives) shall apply to a person who is or when last a civil servant was a member of Her Majesty's foreign service of a grade not lower than that of second secretary as they apply to any other person who is or was a civil servant; and accordingly in subsection (4) of that section (which excludes the application of that section in such a case) for the words "Nothing in this section applies" there shall be substituted the words "Subsection (1) of this section shall not apply".

Expenses.

3. There shall be paid out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums which under any other Act are payable out of moneys so provided.

Citation.

4.—(1) This Act may be cited as the Foreign Service Act, 1960.

5 & 6 Eliz. 2.
c. 37.

(2) This Act, the Superannuation Acts, 1834 to 1950, and the Superannuation Act, 1957, may be cited together as the Superannuation Acts, 1834 to 1960.

CHAPTER 12

ARRANGEMENT OF SECTIONS

Section

1. Enforcement of payment of rates.
2. Application for warrant of distress.
3. Statement of case on application for warrant.
4. Execution of warrant of distress.
5. Costs of obtaining warrant of distress.
6. Charges for levying distress.
7. Imprisonment in default of sufficiency of distress.
8. Inquiry as to means before issue of warrant of commitment.
9. Attendance of defaulter for purposes of inquiry.
10. Abatement of proceedings on payment of rate and costs.
11. Jurisdiction of justices.
12. Service and execution of process.
13. Meaning of "rate" and "charges".
14. Application to City of London.
15. Repeal and savings.
16. Short title, extent and commencement.

Schedules:

First Schedule—Forms of Documents.

Second Schedule—Repeals.